

25LBCV02568 25LBCV02568

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-09-04

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Case Number: 25LBCV02568 Hearing Date: September 4, 2026 Dept: S25

Motion: Defendant Akshay Mehta, MD's Motion for Terminating Sanctions

Moving Party: Defendant Akshay Mehta, MD ("Defendant")

Responding Party: Plaintiff Marita Pall, MD ("Plaintiff")

Tentative Ruling

Defendant moves the Court to dismiss Plaintiff's case with prejudice against Defendant for Plaintiff's failure to comply with the Court's order. Defendant also requests monetary sanctions. Plaintiff filed a declaration stating that verified and code-complaint discovery responses have been provided to Defendant. No reply has been received.

"A decision to order terminating sanctions should not be made lightly." (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702.) The Court finds that terminating sanctions is a harsh remedy. The instant motion is DENIED. Based upon the information provided by Plaintiff's counsel concerning the reasons for the delay, the Court declines to award sanctions this time.